

Opinion of the Court

If the line drawn in these two opinions is a fine one, it is one that the Court has drawn repeatedly in explaining the respective roles of the jury and judge in patent cases,¹³ and one understood by commentators writing in the aftermath of the cases Markman cites. Walker, for example, read *Bischoff* as holding that the question of novelty is not decided by a construction of the prior patent, “but depends rather upon the outward embodiment of the terms contained in the [prior patent]; and that such outward embodiment is to be properly sought, like the explanation of latent ambiguities arising from the description of external things, by evidence *in pais*.” A. Walker, Patent Laws § 75, p. 68 (3d ed. 1895). He also emphasized in the same treatise that matters of claim construction, even those aided by expert testimony, are questions for the court:

“Questions of construction are questions of law for the judge, not questions of fact for the jury. As it cannot be expected, however, that judges will always possess the requisite knowledge of the meaning of the terms of art or science used in letters patent, it often becomes necessary that they should avail themselves of the light furnished by experts relevant to the significance of such words and phrases. The judges are not, however, obliged to blindly follow such testimony.” *Id.*, § 189, at 173 (footnotes omitted).

Virtually the same description of the court’s use of evidence in its interpretive role was set out in another contemporary treatise:

(Exch. 1841), which we discuss, *supra*, at 383, and, whether or not he agreed with *Neilson*, he stated, “[b]ut I do not proceed upon this ground.” 29 F. Cas., at 325.

¹³ See, e. g., *Coupe v. Royer*, 155 U. S. 565, 579–580 (1895); *Silsby v. Foote*, 14 How. 218, 226 (1853); *Hogg v. Emerson*, 6 How. 437, 484 (1848); cf. *Brown v. Piper*, 91 U. S. 37, 41 (1875); *Winans v. New York & Erie R. Co.*, 21 How. 88, 100 (1859); cf. also *U. S. Industrial Chemicals, Inc. v. Carbide & Carbon Chemicals Corp.*, 315 U. S. 668, 678 (1942).